

24SMCV02013 24SMCV02013

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The underlying case is a contract and IP dispute. Counsel for plaintiff Sunset, who was also counsel for cross defendant Sathyanesan, withdrew effective April 6, 2026. While Sathyanesan has new counsel, Sunset has none. The original trial was set for August 10, 2026, but the court on its own motion continued the trial to November 2, 2026. That order was made on May 8, 2028. The moving party, Multi Social, changed its counsel, at least with regard to the cross complaint. Lead counsel, however, became ill on August 24, 2026, and was admitted to the hospital on August 30, 2026. While he was released from the hospital on September 2, 2026, he remains ill and states that he will not be able to be ready for trial by the current trial date, especially given discovery cut offs. Further, Multi Social contends that it has not been able to take the deposition of Sunset's PMK because Sunset has no counsel. (The court is not sure why that would be. Sunset's management can appoint a PMK, who can then be deposed, albeit without counsel.) Apparently no party opposes the motion.

The case was filed on April 26, 2024—over two years ago. The court is worried about the age of the case. At the time the original trial date was set, the court warned all parties that the date would not be continued absent truly unforeseen and unforeseeable circumstances. When the court moved the date on its own motion, it advised the parties that if the new date was a problem, to inform the court quickly and the court would try and work with all parties to find a convenient date. It was about four months between the time the court moved the trial date and this application.

The court does not find Sunset's inability to find counsel to be sufficient to delay the trial. It

might lead to the complaint ultimately being stricken, but not a continuance. Sunset has had plenty of time to find a new lawyer. Nor is the court fully clear that Multi Social could not have completed discovery if it were fully diligent. But the court cannot say the same as to the illness. The court's understanding is that the illness came on perhaps suddenly in late August. While arguably this motion could have been brought a week ago, things developed between August 24 and August 30. The court cannot really fault counsel for waiting to see what would happen. The court will assume that this illness was both unforeseen and unforeseeable, and that will constitute cause to move the trial. For that, and only that, reason, the application is GRANTED. The court will need to set a TSC. The court does not want to set it until Multi Social's counsel's situation has firmed up, which the court very much hopes is soon. The parties also agree to extend the discovery cut off dates. Accordingly, the court will order that the DISCOVERY CUT OFF DATES (INCLUDING EXPERTS) WILL BE TIED TO THE NEW TRIAL DATE WHEN SET.

The court notes that this is a reprieve for Sunset, which was otherwise in the danger of having its complaint stricken and perhaps its answer to the cross complaint as well.